



TOP 10 STATES WITH PENDING CASES IN HIGH COURTS

States	Pending cases as on 31-03-09
Uttar Pradesh	9,35,425
Tamil Nadu	4,62,009
Maharashtra	3,39,921
West Bengal	3,06,253
Punjab & Haryana	2,47,115
Orissa	2,43,146
Rajasthan	2,35,824
Madhya Pradesh	1,86,422
Andhra Pradesh	1,73,454
Karnataka	1,32,308

Source: Supreme Court of India

TOP 10 STATES WITH PENDING CASES IN DISTRICT COURTS

States	Pending cases as on 31-03-09
Uttar Pradesh	52,36,738
Maharashtra	41,33,273
West Bengal	24,62,430
Gujarat	22,42,686
Bihar	14,42,580
Rajasthan	13,33,601
Karnataka	10,82,342
Madhya Pradesh	10,73,955
Tamil Nadu	10,57,141
Delhi	10,27,585

Source: Supreme Court of India

started making long-haul plans for judicial reforms. Its maiden effort fell by the wayside when the Government tried to push the controversial Judges (Asset) Bill during the last Parliament session. Originally meant to inject transparency into the judicial system, the bill is now facing opposition from MPs across the spectrum for missing out on crucial provisions that would force the judges to make their assets public. But the Government was forced to retreat as MPs, including Congressmen, objected to its contents but not before vigorously stirring up a public debate. While the apex court judges have finally agreed to reveal their assets, the CJI himself has made it clear that it is not binding on the judges down the line in the states. Noted lawyer Mahesh Jethmalani differs. "I believe that there should be complete accountability. By not making it binding on them to declare their assets, the judiciary is allowing the public to question this faith," he says.

The judiciary's claim has evoked angry reactions from civil society, judicial activists, former and even sitting judges. A decade after demitting

office, recently former CJI J.S. Varma publicly asked the CJI to put his asset file, which is with the Supreme Court registrar general, on the court's website. Judge Kannan has compelled his robed brethren to raise eyebrows when he announced his intent to declare his assets through his blog. He explained this indulgence saying that he was doing so "not in a prurient form to purvey what is in a judge's wallet but to rationalise it on the ground that the person who is entrusted with the task of judging others' conduct is beyond reproach". The problem, however, is in the message, not the medium. "I do hope most of the judges in the high courts and the Supreme Court would act likewise and bring quietus to this unsavoury controversy. The judiciary's real strength lies in public acclaim. I am sure this (declaring of assets) will raise us a 'peg or two' in public estimation," Justice Varma said.

While there is consensus in the Government over the issue of declaration of assets by judges, there are differences relating to the method and authority to which such disclosures should be made. The judi-